Haresh Kumar Choudhary vs State Nct Of Delhi on 29 March, 2023

Author: Amit Sharma

Bench: Amit Sharma

Neutral Citation Number : 2023:DHC:2241

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

Reserved on: 27th Ma
Pronounced on: 29th Mar

+ BAIL APPLN. 2948/2022
HARESH KUMAR CHOUDHARY ...
Through: Mr. Aditya Kumar Choudh
Mr. Gurmehar Va
Mr. Mrigank Bhardwaj, M
Choudhary, Advocates.

versus

STATE NCT OF DELHI ...
Through: Mr. Aman Usman, APP for
with A.S.I. Vinay Tyagi
Branch, Delhi.

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

JUDGMENT

AMIT SHARMA, J.

1. The present application under Section 438 of the Code of Criminal Procedure, 1973 („CrPC) seeks grant of anticipatory bail in case FIR No. 149/2022, dated 22.07.2022 under Sections 419/420/468/471/120B/34 of the Indian Penal Code, 1860 („IPC) registered at PS Crime Branch.

2. Briefly stated, the facts of the present case are as follows:

> i. On 22.07.2022, information was received at PS Crime Branch that a person named Lucky alongwith his associates was involved in cheating people and obtaining money from them on the pretext of getting their loans sanctioned under the 'Pradhan Mantri Mudra Loan' and received Neutral Citation Number : 2023:DHC:2241 the said money in fake bank accounts. It was stated that Lucky and his associates opened

several fake bank accounts in order to receive the money and had even purchased several SIM Cards to call people. ii. Acting on the said information, the informer, alongwith a team of police personnel reached C-Block, New Ashok Nagar, Delhi at about 9:50 AM on 22.07.2022.

iii. The informer identified a person standing nearby as Lucky. Lucky was apprehended and under interrogation, disclosed that he and his associates cheated people on the pretext of getting their loans sanctioned. He had a mobile phone with a SIM Card bearing the mobile number 8109985536. On further interrogation, Lucky disclosed that he and his associates used the said mobile phone to call and speak with people about getting their loans sanctioned. He also stated that once the money was received in fake bank accounts opened by them, they used to withdraw the same and distribute it among themselves. iv. Lucky led police party to his apartment, where in a room, two mobile phones, one diary, some bank cards and a laptop were found. The two mobile phones had SIM Cards bearing numbers 9721797446 and 7836025808. The diary contained details of several bank accounts. Three debit cards of accounts opened with Kotak Mahindra Bank, IndusInd Bank and Union Bank were also found alongwith one chequebook.

v. It was stated that Lucky further disclosed that the SIM Cards and bank accounts used by him and his associates were provided by persons namely Parveen and Vikesh @ Mintu with whom he met through Haresh, the present applicant who worked at Just Dial. It was stated Neutral Citation Number : 2023:DHC:2241 that Haresh used to provide data relating to loan enquiries to Lucky, who then used to call the intended targets.

vi. The persons who were allegedly cheated by Lucky and his associates were interrogated by the police. It was stated that most of them informed the police that they were cheated on the pretext of getting their loans sanctioned.

vii. Subsequently, on the basis of the initial enquiry and rec
the present FIR was registered under

419/420/468/471/120B/34 of the IPC naming Lucky as an accused. viii. Lucky was arrested on 23.07.2022 and remanded police custody. Debit cards, cheque books and SIM cards were recovered at his instance.

3. Learned counsel appearing on behalf of the petitioner submitted that the present applicant was not named in the FIR and has only been made an accused based on the statement of Lucky, who is the main accused. It was submitted that the applicant is a well educated man who began working at Just Dial in December 2016 as a Relationship Manager.

4. It was submitted that the applicant was not one of the persons involved in making the alleged phone calls to people. He has not gained any monetary benefit out of the transactions alleged to have been made in the FIR. It was further submitted that the applicant is stated to have shared data

with co- accused persons from 2018 to 2021. However, during his service period at Just Dial, i.e., from 2016 to September 2022, there was no complaint made against him.

5. Learned counsel appearing on behalf of the applicant relied upon the following judgments:

> i. Siddaram Satlingappa Mhetre v. State of Maharashtra and Ors., 2011 Neutral Citation Number : 2023:DHC:2241 (1) SCC 694 and in particular, paragraphs 89,93 and 99 thereof.

ii. Lupita Saluja v. Dggi & Anr., 2021 SCC OnLine Del 487, and in particular, paragraphs 14 and 15 thereof.

6. Learned counsel appearing on behalf of the applicant further submits that after grant of interim protection by this Court vide order dated 28.09.2022, the applicant has joined investigation as and when directed by the Investigating Officer and has fully cooperated with the latter. In these circumstances, there is no requirement for any custodial interrogation and no useful purpose will be served by sending the present applicant in judicial custody. It is further submitted that all other co-accused persons have been released on bail.

7. In the status report dated 17.11.2022, authored by Mr. Rohitash Kumar, Assistant Commissioner of Police, Eastern Range-I, Crime Branch, Delhi, the role of the present applicant has been stated to be:

> i. The name of the applicant appeared from the very beginning of the case in the interrogation of co-accused Lucky as the person who used to provide him the data/details of the persons who were in need of loan. ii. Later, his name came up in the interrogation of co-accused Deepak Mishra in the same context and also in the disclosure statement of co- accused Mintu Kumar.
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> iii. The CDRs of the mobile umbers 9560554029 & 9031263786 of Haresh Kumar establish his connection with co-accused Lucky on his mobile number 8109985536, with co-accused Mintu Kumar on his mobile numbers 9454956403 & 9350416858, with co-accused Rameshwar on his mobile number 9871058753 and with co-accused Atul Kumar on his mobile number 8826329432.
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> Neutral Citation Number : 2023:DHC:2241 iv. There are money transactions between the accounts of co-accused Mintu Kumar and the applicant and also between the fake account recovered from co-ccused Lucky and the applicant. v. During investigation, details about the applicant were sought from Justdial. It was informed that the applicant joined JustDial and was assigned employee code 10046992 with designation as 'Team Leader- Certified Internet Consultant (Sales Team)'. For the purpose of crediting salary, a salary A/c No. 916010065660545 was opened with Axis Bank. He had resigned from the employment of the company on 19.08.2022. A bank statement pertaining to the aforesaid account was obtained for the period from

01.04.2020 to 22.09.2022 from Axis Bank.

Opening Balance in the applicant's salary account was Rs. 1,42,054.29/- (Rupees One Lakh Forty-Two Thousand Fifty-Four Rupees and Twenty-Nine Paise). During this period, a total amount of Rs. 65,73,280.34/- (Rupees Sixty-Five Lakh Seventy-Three Thousand Two Hundred Eight and Thrity-Four Paise) was credited in this account and out of which, Rs. 67,12,450.89/- (Rupees Sixty-Seven Lakh Twelve Thousand Four Hundred Fifty and Eighty-Nine Paise) was withdrawn by him and thus only Rs. 2,883.74/- (Rupees Two Thousand Eight Hundred and Eighty Three and Seventy Four Paise) was remaining in the account, as on 18.09.2022. It is pertinent to note here that on asking whether any employee of JustDial can receive charges in his account or not on behalf of JustDial, JustDial replied that "as per company's policy, we strictly prohibit the collection of service fee/payment by any employees in their personal bank account from the vendors/clients or any person on behalf of Justdial."

Neutral Citation Number : 2023:DHC:2241 vi. It has also been informed by JustDial that 158 business listings had been registered on JustDial through the applicant, out of which 44 business listings (Company/Vendor) were fake. Verification in that regard was done by JustDial itself and such companies were not found to exist. It means that the applicant, with the intention to cheat, opened these fake companies and stole the data of loan seekers, and provided the same to the accused persons for monetary benefit.

vii. During interrogation done in question-answer form, the applicant accepted that he provided data to the accused persons, opened companies/vendors based on fake documents. He also accepted receiving of money in his account from co-accused Mintu Kumar, Lucky and Deepak and accepted providing fake accounts to them. viii. During interrogation, the applicant was asked to provide his mobile phone but he told that his mobile phones have been stolen, however he lodged no police report in this regard, which shows that he did not submit his mobile phones intentionally to destroy the evidence therein.

(emphasis supplied)

8. A supplementary status report was filed, wherein it has been stated has under:

> i. The applicant was summoned in the office for interrogation after serving notices under Section 41(A) of the CrPC. on four occasions, i.e., 06.12.2022, 17.12.2022, 01.01.2023 & 04.01.2023. ii. During his interrogation, on being questioned about the mobile phones & SIM numbers he was using at the time of commission of Neutral Citation Number : 2023:DHC:2241 crime, the applicant shrewdly and intentionally lied that he was not in possession of the said phones as same have been lost. iii. The recovery of these mobile phones is indispensible to send to same to FSL to retrieve vital information related to the present case. On repeated directions during interrogation, the applicant produced two mobile phones with SIM Cards. The said mobile phone carried WhatsApp chats with co-accused Mintu. Many of the PDF files and pictures were deliberately deleted by the present applicant and the same could

not be downloaded. The mobile phones were seized and sent to FSL to retrieve the data. iv. From the CDRs, it was established that the present applicant was in regular touch with other co-accused persons namely Lucky, Deepak Mishra and Mintu. The applicant deliberately deleted the WhatsApp chats with co-accused Lucky and Deepak Mishra.

v. Information was provided to the investigating agency by M/s JustDial that the present applicant facilitated opening of a number of companies fraudulently on the portal of M/s Justdial in the names of co-accused Mintu, Lucky, Deepak. Despite repeated directions, he did not provided details/documents that he submitted to open these companies in the name of the said co-accused persons.

vi. The applicant is not co-operating in further investigation of the case despite clear directions by concerned Court and he is deliberately and purposefully trying to mislead the investigating agency by furnishing fabricated & misleading information.

Neutral Citation Number : 2023:DHC:2241 vii. Custodial interrogation is urgently required to interrogate the accused at length to retrieve true facts and collect vital evidence/digital gadgets from him.

(emphasis supplied)

9. Vide order dated 11.01.2023, this Court had passed the following directions:

"At request of the learned APP for the State, in order to enable him to file a supplementary report with regard to the verification of the concerned identification number provided by the alleged companies whose registration was done by the applicant, as well as the money trail with respect to his account, the hearing of the present application is adjourned.

List on 06.02.2023.

Interim orders to continue till the next date of hearing."

10. In compliance of the aforesaid order, a second supplementary status report was also filed, wherein it has been stated as under:

i. A reply dated 17.01.2023, alongwith copies of Aadhar Cards verified from Unique Identification Authority of India was been provided to the investigating agency by M/s JustDial. The said Adhaar Cards were used by the applicant for opening business listings with M/s JustDial. In the reply, it was clarified 43 business listings had been registered by the applicant in personal loan categories during the terms of his employment.

ii. Physical verification of four Aadhar Card holders in Delhi & NCR area was conducted and it was found that total nine companies were registered in the name of these four Aadhar Card holders. During verification, it was been found that the persons in whose name these trading companies were registered were not aware about these Neutral Citation Number : 2023:DHC:2241 companies and that somebody had used their IDs for registration of the trading companies in their name. Further, the address of one Aadhar Card holder was found fake.

iii. It was further clarified by M/s JustDial that being a marketing executive, as part of his duties, the applicant was responsible for collecting the business details of vendors, namely, mobile & landline numbers, place of business, e-mail-ID, address proof of the listed 43 companies. The applicant was also responsible for the physical verification of the addresses of the vendors that were registered through him, and it was solely based on his confirmation that the vendors were registered on company's platform.

iv. During investigation, A/c No. 916010065660545 (Axis Bank Saving A/c) was provided by M/s JustDial as his salary account. On an analysis of the bank statements of this account for the period from 01.04.2020 to 22.09.2022, it was been found that online transactions of around Rs. 6 lakhs were carried out through with the accounts of other co-accused persons, namely, Mintu, Lucky and Deepak. Besides, two fake bank accounts in the names of Raja Babu Bhakat and Shyam Sunder were recovered from co-accused Lucky. On scrutiny of the statements of these two bank accounts, it was found that transactions were carried out between them and the account of the applicant. However, a sum of Rs. 65,73,280.34 (Rupees Sixty-Five Lakh Seventy-Three Thousand Two Hundred Eight and Thrity-

Four Paise) was found credited in the salary account of the applicant Choudhary during the period 01.04.2020 to 22.09.2022. It is pertinent to mention here that out of this credited amount, the Neutral Citation Number : 2023:DHC:2241 share of the salary of the applicant is approximately Rs. 9 lakh for the above mentioned period.

v. The reply & the KYC documents (copies of Aadhaar cards) provided by M/s JustDial and an analysis of the statement of the salary account of the applicant clearly shows his malafide, as well as connivance & active role with co-accused persons in the present case.

vi. The applicant is not co-operating with further investigation of the case despite clear directions by concerned Court and he is deliberately and purposefully trying to mislead the investigating agency by furnishing fabricated & misleading information. vii. That the custodial interrogation is urgently required to interrogate the applicant at length to retrieve true facts and collect vital evidence/digital gadgets from him.

(emphasis supplied)

11. Heard learned counsel for the parties and perused the records.

12. It is pertinent to note that the stand of the applicant before this Court on the first date of hearing as recorded in the order dated 28.09.2022 was that the company JustDial, in which he was employed as a relationship manager is engaged in supplying data to the customers on demand and it was submitted that during the course of his duties, as and when a call was received for sharing of data, such data in support of potential customers was supplied as per the package rate of the company. It was further argued that the present applicant is in no manner connected with the alleged fraud, if any, committed by such customers to whom the data was supplied.

Neutral Citation Number : 2023:DHC:2241

13. A perusal of the status reports, as filed before this Court mentioned hereinabove reveals that the present applicant was actively involved in supplying data to his co-accused persons and his link with the said co-accused persons has sufficiently come on record. The stand of the applicant that he at best supplied the data of potential customers to the co-accused persons and was otherwise not involved in the fraud committed by the co-accused persons by inducing innocent loan seekers and obtaining money from them on the pretext of getting their loan sanctioned under the 'Pradhan Mantri Mudra Loan', is not tenable at this stage.

14. It has come on record from the employer of the present applicant, i.e., M/s Just Dial, that 43 business listings, which were registered by the present applicant, were fake. The investigation conducted so far has clearly brought out that the present applicant was prima facie involved in the whole conspiracy with the other co-accused persons cheating innocent loan seekers by obtaining money from them on the pretext of getting their loan sanctioned under the aforesaid 'Pradhan Mantri Mudra Loan'.

15. The case of the prosecution is that the present applicant, being at the position of a business relationship manager at JustDial provided the vital inputs to his co-accused persons and had complete knowledge about how that data would be used cannot be disregarded. The investigation, as revealed in the aforesaid status report, has brought on record enough material to connect the present applicant with the main conspiracy.

16. Despite the interim protection given by this Court, the applicant has not fully cooperated with the investigation agency.

17. On a pointed query by this Court with regard to the requirement of present applicant for custodial interrogation, learned APP for the State Neutral Citation Number : 2023:DHC:2241 submitted that the applicant has not provided the details/documents and the source thereof by which he used to open the fake companies in the name of co-accused persons. Similarly, the mobile phones and SIM numbers that he was using at the time of commission of the alleged offence have to be recovered.

18. It is pointed out by learned APP for the State that a total amount of Rs. 65,73,280.34/- (Rupees Sixty-Five Lakh Seventy-Three Thousand Two Hundred Eight and Thrity-Four Paise) was credited into his account during the period 01.04.2020 to 22.09.2022 and only an amount of Rs. 2,883.74/- (Rupees Two Thousand Eight Hundred and Eighty Three and Seventy Four Paise) was left in his account as on 18.09.2022. It is submitted that as per enquiries, the share of the salary from the said amount comes to approximately Rs. 9 lakhs for the above mentioned period. It was further submitted that the said money trail is not satisfactorily answered by the applicant.

19. The Hon'ble Supreme Court, in 'State v. Anil Sharma, (1997) 7 SCC 187', has held as under:

> "6. We find force in the submission of the CBI that custodial interrogation is qualitatively more elicitation-oriented than questioning a suspect who is well ensconced with a favourable order under Section 438 of the Code. In a case like this effective interrogation of a suspected person is of tremendous advantage in disinterring many useful informations and also materials which would have been concealed. Success in such interrogation would elude if the suspected person knows that he is well protected and insulated by a pre-arrest bail order during the time he is interrogated. Very often interrogation in such a condition would reduce to a mere ritual. The argument that the custodial interrogation is fraught with the danger of the person being subjected to third-degree methods need not be countenanced, for, such an argument can be advanced by all accused in all criminal cases. The Court has to presume that responsible police Neutral Citation Number : 2023:DHC:2241 officers would conduct themselves in a responsible manner and that those entrusted with the task of disinterring offences would not conduct themselves as offenders".

(emphasis supplied)

20. The contention of the learned counsel appearing on behalf of the applicant that the other co-accused persons have been granted bail is unfounded inasmuch as the said co-accused persons were released on regular bail and not anticipatory bail which is the relief sought herein.

21. While considering the prayer for grant of anticipatory bail, this Court has to ensure that the investigation in the subject FIR is not prejudiced if such relief is granted. This Court is of the opinion that grant of anticipatory bail to the present applicant would prejudice the ongoing investigation in the present FIR. In the present case, custodial interrogation of the applicant is required for the aforesaid purposes.

22. Consequently, the interim protection granted to the present applicant is withdrawn forthwith and the present bail application is dismissed alongwith all pending applications.

23. Needless to state, nothing mentioned hereinabove is an opinion on the merits of the case.

24. Order be uploaded on the website of this court forthwith.

AMIT SHARMA JUDGE March 29, 2023/sn